

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
KEVIN LEMOS, by his mother and
Natural guardian, SANDRA AMEZQUITA,

The infant Plaintiff and his
mother reside at:

100-05 Atlantic Avenue, Apt. 1
Jamaica, New York 11418

Plaintiff,

SUMMONS

-against-

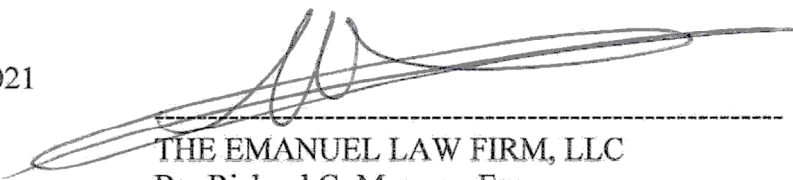
THE CITY OF NEW YORK,

Index No.:
Filed on November 2021

Defendant.
-----X

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED TO APPEAR AND
ANSWER the Complaint in this action and to serve a copy of your Answer, or if the Complaint
is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's attorney
within TWENTY (20) days after service of this Summons, exclusive of the day of service (or
within thirty [30] days after service is complete if this Summons is not personally delivered to
you within the State of New York); and in case of your failure to appear and answer, Judgment
will be taken against you by default for an amount in excess of the minimum monetary
jurisdiction of this Court, together with legal interest, and the costs and disbursements of this
action.

Dated: November 12, 2021



THE EMANUEL LAW FIRM, LLC
By: Richard G. Monaco, Esq.
Attorneys for Plaintiff

5417 Fourth Avenue
Brooklyn, New York 11220
Tel. (718) 492-2626
Fax (718) 492-1311

TO: THE CITY OF NEW YORK
Law Department
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
KEVIN LEMOS, by his mother and
Natural guardian, SANDRA AMEZQUITA,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK,

Index Number:

Defendant.

-----X

The Plaintiffs, KEVIN LEMOS, by his mother and natural guardian, SANDRA AMEZQUITA,
by their attorney, THE EMANUEL LAW FIRM, LLC, complaining of the Defendant,
respectfully alleges as follows:

THE PARTIES TO THE ACTION

1. At all times herein mentioned, the Plaintiff, SANDRA AMEZQUITA, was and is a resident of the County of Queens, City and State of New York, residing at 100-05 Atlantic Avenue, Apartment 1, Jamaica, New York 11418.
2. At all times herein mentioned, SANDRA AMEZQUITA, is the mother and natural guardian of her infant son, KEVIN LEMOS.
3. KEVIN LEMOS, is an infant person residing with his mother and father, at 100-05 Atlantic Avenue, Apartment 1, Jamaica, New York 11418.
4. At all times herein mentioned, THE CITY OF NEW YORK, was and is a municipal

entity, organized and existing pursuant to the Constitution of the State of New York.

5. At all times herein mentioned, THE CITY OF NEW YORK, maintains offices by its LAW DEPARTMENT at 100 Church Street, New York, New York 10007.
6. The City of New York is authorized to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant, CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department (hereinafter "NYPD").
7. New York City Police Officer PEDRO VALLECILLO, shield number 30714, is and was at all times mentioned herein, an officer, employee and agent of the NYPD. On September 20, 2014, he was assigned to the 72nd Precinct.
8. New York City Police Officer , ELVIS MERIZALDE shield number 26862, is and was at all times mentioned herein, an officer, employee and agent of the NYPD. On September 20, 2014, he was assigned to the 72nd Precinct.
9. New York City Police Officer JOSEPH DEGAN, shield number 15228, is and was at all times relevant an officer, employee, and agent of the NYPD. On September 20, 2014, he was assigned to the 72nd Precinct, though on September 29, 2015, he was reassigned to the Quartermaster.
10. New York City Police Officer ERIC ROOME, shield number 16591, is and was at all relevant times an officer, employee and agent of the NYPD. On September 20, 2014, he was assigned to the 72nd Precinct.
11. New York City Police Officer GARY BONAVIDA, shield number 22808, is and was at

all times relevant, an officer, employee and agent of the NYPD. On September 20, 2014, he was assigned to the 72nd Precinct.

12. New York City Police Officer RICHARD RODRIGUEZ, shield number 27733 ("Officer Rodriguez") is and was at all times relevant an officer, employee and agent of the NYPD. On September 20, 2014, he was assigned to the 72nd Precinct.

13. New York Police Sergeant Delossantos, shield number 2178, is and was at all times relevant an officer, employee and agent of the NYPD. On September 20, 2014, he was assigned to the 72nd Precinct.

14. New York City Police Sergeant Frank Rodriguez ("Sergeant Rodriguez"), shield number 2768, was at all times relevant an officer, employee and agent of the NYPD. On September 20, 2014 he was assigned to the 72nd Precinct.

15. New York City Lieutenant Stephen Spataro, tax ID 939513, was at all relevant times an officer, employee and agent of the NYPD. On September 20, 2014, he was assigned to the 72nd Precinct.

16. The City of New York maintains a police department at Precinct 72, 830 Fourth Avenue, Brooklyn, New York 11232.

17. At all times relevant herein, VALLECILLO, MERIZALDE, DEGAN, ROOME, BONAVIDA, OFFICER RODRIGUEZ, DELOSSANTOS, SERGEANT RODRIGUEZ and LIEUTENANT SPATARO were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all relevant times, with the power and authority vested in them as

officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

18. The City of New York is liable to the Plaintiff under doctrines which include, but are not limited to, respondeat superior.

STATEMENT OF FACTS

19. On or about September 20, 2014, at approximately 2:15 a.m., Sandra Amezquita was in the vicinity of Fifth Avenue between 40th and 41st Streets, Brooklyn, New York.
20. SANDRA AMEZQUITA, who was pregnant and late in her second trimester at the time, was assaulted and battered by a member of the NYPD, and arrested without probable cause. Specifically, while standing in the vicinity of her son, who police officers had attempted to arrest, Plaintiff Sandra Amezquita, was grabbed by Officer Degan, who threw her to the pavement, such that she landed on her abdomen, with Officer Degan positioning himself on her back. Officer Degan also smashed a baton or nightstick on her body. Officer Roome helped pin her down on the ground.
21. Sandra Amezquita, was arrested without probable cause by Officers Degan and Roome, given a summons for disorderly conduct, and was held in police custody for approximately 3.75 hours.
22. Officer Vallecillo signed the paperwork related to her arrest.
23. Prior to the incident, there were no complications with Sandra Amezquita's, pregnancy. The incident resulted in complications with the pregnancy, which, upon information and belief, caused Sandra Amezquita, to deliver the baby, Plaintiff Kevin Lemos,

approximately 4 weeks early.

24. The incident put the physical well-being and cognitive development of Kevin at risk.
25. Kevin Lemos, has been caused to sustain physical, emotional and mental illness and suffering as a result of the attack on his mother, while Kevin Lemos was in utero.
26. The injuries to Kevin Lemos, in utero, were a reasonably foreseeable consequence of the actions of the Defendant and its officers.
27. Upon information and belief, Sandra Amezcuita was arrested and prosecuted on the basis of information provided by Officers Degan, Roome and Vallecillo that was false and fabricated.
28. The prosecution of Sandra Amezcuita was initiated without probable cause and with malice.
29. The conduct of the Defendant in detaining and arresting Sandra Amezcuita and using force against her was totally without probable cause, was excessive, and was done maliciously, falsely and in bad faith.
30. On December 2, 2014, the criminal prosecution was terminated favorably to Sandra Amezcuita when the charges were dismissed.
31. The assault and battery by Defendant police officers on Sandra Amezcuita was in excess of their rightful authority as NYPD officers, and was otherwise made without proper cause.
32. The assault and battery upon Sandra Amezcuita also constituted a battery upon Kevin Lemos, who was in utero at the time of the attack upon Sandra Amezcuita.
33. Defendants' conduct caused Sandra Amezcuita's son, KEVIN LEMOS, to sustain physical pain and injury, suffer psychological and emotional harm, and suffer economic

injuries including, but not limited to, future loss of wages. Defendant's actions constitute outrageous and reckless conduct, and demonstrate a callous indifference to and willful disregard of Plaintiff's state and other protected rights.

34. Defendant's conduct as stated aforesaid, caused damage and physical and mental injuries to Kevin Lemos, who was in utero at the time of the assault.
35. By Court Order dated September 7, 2018, the Court has permitted a Claim to be asserted on behalf of Kevin Lemos. A copy of the Court's Order is annexed hereto and made a part hereof.
36. At least thirty (30) days have elapsed since the service of Notice of Entry of the Decision and Order, and adjustment and / or payment has been neglected and / or refused.
37. At all relevant times, Defendant, and its police officers, were acting under color of state law.
38. This action is timely commenced due to the toll of the period of limitations for infancy.

AS AND FOR A FIRST CAUSE OF ACTION FOR EXCESSIVE FORCE

39. The Plaintiff repeats, reiterates and re-alleges each and every allegation set forth at Paragraphs 1 through 37 as though fully set forth hereat.
40. The conduct and actions of the Police Officers, acting in concert, and under color of law, in assaulting, arresting, detaining and prosecuting Sandra Amezquita was excessive and unreasonable, was done intentionally, willfully, maliciously, with a deliberate indifference and / or with a reckless disregard for the natural and probable consequences of their acts, including injury to her son, who was in utero, was done without lawful

justification or reason, and was designed to and did cause specific and serious physical and emotional pain and suffering in violation of Sandra Amezcuita's rights, and the rights of her son, Kevin Lemos, in utero.

41. As a direct and proximate result of the foregoing, Kevin Lemos was subjected to great physical and emotional pain and humiliation, and was otherwise damaged.

AS AND FOR A SECOND CAUSE OF ACTION FOR BATTERY

42. The Plaintiff repeats, reiterates and re-alleges each and every allegation set forth above at Paragraphs 1 through 41 as though fully set forth hereat.

43. Police Officers Degan, Roome, Vallecillo, and Merizalde, acting within the scope of their employment, intentionally, willfully, and maliciously battered Sandra Amezcuita when they, in a hostile and / or offensive manner, struck Sandra Amezcuita without her consent and with the intention of causing harmful and / or offensive bodily contact to Sandra Amezcuita and caused such batteries to her son in utero, Kevin Lemos.

44. Police Officers Degan, Roome, Vallecillo, and Merizalde were at all times relevant agents, servants, and employees acting within the scope of their employment by the City of New York and NYPD, which are therefore responsible for their conduct.

45. Kevin Lemos suffered injury as a result of Officers Degan, Roome and Vallecillo's conduct.

**AS AND FOR A THIRD CAUSE OF ACTION FOR INTENTIONAL INFLICTION OF
EMOTIONAL DISTRESS – COMMON LAW CLAIM**

46. The Plaintiff repeats, reiterates and re-alleges each and every allegation set forth above at Paragraphs 1 through 45 as though fully set forth hereat.
47. The conduct of the police officers was done without provocation or justification, was extreme, outrageous, and utterly intolerable in a civilized community – conduct which exceeds all reasonable bounds of decency.
48. The conduct of the Defendant, as described above, was intended to and did cause severe emotional distress to the Plaintiff, KEVIN LEMOS.
49. The conduct of the Defendant was the direct and proximate cause of injury and damage to Kevin Lemos and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
50. As a result of the foregoing, the Kevin Lemos was subjected to serious physical and emotional pain and suffering, and was otherwise damaged and injured.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS – COMMON LAW CLAIM**

51. The Plaintiff repeats reiterates and re-alleges each and every allegation set forth above at Paragraphs 1 through 49, as though fully set forth hereat.
52. The conduct of the Defendant, in assaulting and battering Sandra Amezcuita, was careless and negligent as to the emotional health and well-being of Sandra Amezcuita, and caused severe emotional distress to Sandra Amezcuita, and consequently to the Plaintiff, Kevin Lemos.
53. The acts and conduct of the Defendant was the direct and proximate cause of injury and

damage to the Plaintiff Kevin Lemos and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

54. As a result of the foregoing, the Plaintiff Kevin Lemos was subjected to serious physical and emotional pain and suffering, and was otherwise damaged and injured.

AS AND FOR AN FIFTH CAUSE OF ACTION – COMMON LAW NEGLIGENCE

55. The Plaintiff repeats, reiterates and re-alleges each and every allegation set forth above at Paragraphs 1 through 54 as though fully set forth hereat.

56. The police officers, while acting as agents, servants and employees of the Defendant THE CITY OF NEW YORK, in their capacity as police officers of the NYPD owed a duty to perform their police duties without the use of excessive force. The police officers use of force upon Sandra Amezcuita, when Sandra Amezcuita was unarmed and did not pose a threat of death or grievous bodily injury to the police officers, or to others constitutes negligence for which the police officers are individually liable.

57. As a proximate result of the Defendant's negligent use of excessive force, the Plaintiff Kevin Lemos sustained physical and emotional pain and suffering, and were otherwise damaged and injured.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR RESPONDEAT SUPERIOR –
COMMON LAW VIOLATIONS**

58. The Plaintiff repeats, reiterates and re-alleges each and every allegation set forth above at Paragraphs 1 through 57 as though fully set forth above.

59. The conduct of the police officers named herein, occurred while these officers were on

duty, and in uniform and in and during the course and scope of their duties and functions as New York City police officers, and while these officers were acting as agents, officers, servants and employees of the THE CITY OF NEW YORK. As a result, Defendant, THE CITY OF NEW YORK, is liable to the Plaintiff, KEVIN LEMOS, pursuant to state common law doctrine of respondeat superior.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR NEGLIGENT SUPERVISION,
RETENTION, TRAINING – COMMON LAW CLAIM**

60. The Plaintiff repeats, reiterates and re-alleges each and every allegation set forth above at Paragraphs 1 through 59 as though fully set forth hereat.

61. Defendant, THE CITY OF NEW YORK, negligently trained, retained and supervised the named police officers. The acts and conduct of the named officers were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

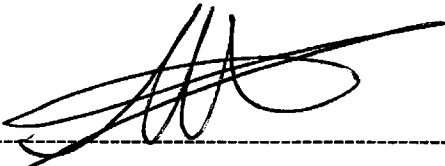
62. As a result of the foregoing, the Plaintiff Kevin Lemos was subjected to great physical and emotional pain and suffering and was otherwise damaged and injured.

The Plaintiff, KEVIN LEMOS, seeks damages against the Defendant based upon the aforesaid Causes of Action, which are in an amount in excess of the monetary jurisdictional limits of all Courts of inferior monetary jurisdiction.

WHEREFORE, the Plaintiff, KEVIN LEMOS, by his mother and natural guardian, SANDRA AMEZQUITA, demands monetary judgment in the form of damages against the Defendant,

together with the costs and disbursements of this action.

Dated: Brooklyn, New York
November 12, 2021



THE EMANUEL LAW FIRM, LLC
BY: Richard G. Monaco, Esq.
Attorneys for Plaintiff

KEVIN LEMOS, by his Mother and Natural Guardian
SANDRA AMEZQUITA

5417 Fourth Avenue
Brooklyn, New York 11220
Tel. (718) 492-2626
Fax (718) 492-1311
Picone2004@aol.com

TO: THE CITY OF NEW YORK
Law Department
100 Church Street
New York, New York 10007

City # 2018-026285

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 7 day of ~~October~~ 20 18

P R E S E N T :

Hon. Boddie
Justice

Kevin Lemos

Plaintiff(s)

Cal. No.

Index No.

47
506513/2018

- against -

City of New York, et al.

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Petitioner's application for leave to file late notice of claim is granted, ~~and~~ pursuant to Russo v. Monroe, et al, 282 AD2d 465 (2001), over city objection and after oral argument.

For Clerks use only

MG

MD

Motion Seq. #

1

ENTER

J.S.C.

HON. REGINALD A. BODDIE
J.S.C.

EJV-rev 11-04

For appearance
only: A.S.
City

Douglas A. Emanuel
for P/Petitioner

NOTICE OF CLAIM**X****In the Matter of the Claim of****KEVIN LEMOS, BY HIS MOTHER AND NATURAL GUARDIAN, SANDRA AMEZQUITA,****AGAINST**

**THE CITY OF NEW YORK, POLICE OFFICERS
PEDRO VALLECILLO, shield no. 30714, ELVIS
MERIZALDE, shield no. 26862, JOSEPH DEGAN,
shield no. 15228, ERIC ROOME, shield no. 16591
GARY BONAVIDA, shield no. 22808, and RICHARD
RODRIGUEZ, shield no. 27733, SERGEANT
DELOSSANTOS, shield no. 2178, SERGEANT
FRANK RODRIGUEZ, shield no. 2768,
LIEUTENANT STEPHEN SPATARO, tax ID 939513,
and police officers JOHN DOE, RICHARD ROE and
other police officers presently unknown to Plaintiffs,**

X

**TO: CITY OF NEW YORK, LAW DEPARTMENT
Office of Corporation Counsel
100 Church Street
New York, N.Y. 10007**

PLEASE TAKE NOTICE, that the undersigned Claimant hereby makes claim and demand against the City of New York, its named Police Officers, their respective agents, servants, contractors and / or employees, as follows:

1. The name and post-office address of each Claimant and Claimants' attorney is:

**KEVIN LEMOS, by his
Mother and Natural Guardian
SANDRA AMEZQUITA
100-05 Atlantic Avenue, Apartment 1
Jamaica, New York 11418**

**LAW OFFICE OF
DOUGLAS A. EMANUEL
5417 Fourth Avenue
Brooklyn, New York 11220
Tel. (718) 492-2626**

- 2. The Nature of the Claim:** The nature of the claim is for personal injuries, including without limitation, chronic headaches, chronic stomach aches, circulatory damage, injury and problems, potential brain injury and brain damage, conscious pain and suffering, emotional distress, grief and mental anguish (past, present and future), future pecuniary and economic damages and loss arising out of an assault / attack by the New York City Police upon the Mother of Kevin Lemos, to wit, Sandra Amezcuita, while she was five (5) months pregnant with Kevin Lemos. The police assault occurred on September 20, 2014 at approximately 2:15

NYSCEF DOC. NO. 1

RECEIVED NYSCEF 11/12/2021

a.m. The assault occurred outside a Restaurant known as El Tesoro Ecuatoriano Restaurant, at or formerly at 4015 5th Avenue, Brooklyn, New York 11232. The incident took place on a public street, between 40th and 42nd Street, in the area known as Sunset Park.

3. The time when, the place where and the manner in which the claim arose: The claim originated with the police assault occurring on September 20, 2014 at approximately 2:15 a.m. when the Mother and Natural Guardian (Sandra Amezcuita) of the Claimant, KEVIN LEMOS was assaulted and attacked by members of the New York City Police Department, including the named members in the caption above, while she was five (5) months pregnant with the Claimant, KEVIN LEMOS, and she was caused, by said assault, which included the police stepping on top of her, standing on top of her, throwing her so that she landed abdomen down on pavement, and tasing her, resulting in Kevin Lemos being born by Caesarian Section prematurely on December 16, 2014, when he was scheduled to be born on January 10, 2015. See also section 3 above. As of December 15, 2017, the Infant's chronic headaches and chronic stomach aches, as set forth above, have been diagnosed.
4. The items of damage or injuries claimed are: Claimant, KEVIN LEMOS, suffered serious injuries including, but not limited to, chronic headaches, chronic stomach aches, circulatory damage, injury and problems, potential brain injury and brain damage, conscious pain and suffering, emotional distress, grief and mental anguish (past, present and future), future pecuniary and economic damages and loss and medical care and treatment.

The undersigned Claimant theretofore presents this Claim for adjustment and payment. You are hereby notified that unless it is adjusted and paid within the time provided by law from the date of presentation to you, Claimant intends to commence an action on this claim.

TOTAL AMOUNT CLAIMED: \$3,000,000.00 in monetary damages.

Dated: Brooklyn, New York
March 22, 2018



KEVIN LEMOS, BY HIS MOTHER
AND NATURAL GUARDIAN,
SANDRA AMEZQUITA



LAW OFFICE OF DOUGLAS A. EMANUEL
BY: DOUGLAS A. EMANUEL, ESQ.
5417 Fourth Avenue
Brooklyn, New York 11220
Tel. (718) 492-2626
Fax (718) 492-1311

VERIFICATION

STATE OF NEW YORK)
)
COUNTY OF KINGS) SS.:

I, SANDRA AMEZQUITA, being duly sworn, deposes and says that deponent is the Mother and Natural Guardian of the infant, KEVIN LEMOS, who is the above claimant. Deponent has read the foregoing NOTICE OF CLAIM and knows its contents; the same is true to deponent's knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters deponent believes it to be true.

Dated: Brooklyn, New York
March 2018

Sandra P. Amezquita
KEVIN LEMOS, BY HIS MOTHER
AND NATURAL GUARDIAN,
SANDRA AMEZQUITA

Sworn to before me this
22 day of March, 2018

Notary Public

ROBERTO J. JORDAN
Notary Public, State of New York
No. 01R05024308
Qualified in Kings County
Commission Expires 07/01/2021

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

KEVIN LEMOS, by his mother and
Natural guardian, SANDRA AMEZQUITA,

Plaintiff,

-against-

Index Number:

THE CITY OF NEW YORK,

Defendant.

-----X

COMPLAINT

Service of a copy of the within

is hereby admitted:

Dated:

Attorneys for

PLEASE TAKE NOTICE

// NOTICE OF ENTRY

that the within is a (certified) true copy of a
Clerk of the within named Court on

duly entered in the Office of the

//NOTICE OF SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the HON.
, on of the Judges of the within named Court, at
New York, on , 2021, at .M.

Dated:

THE EMANUEL LAW FIRM, LLC
Attorneys for Plaintiff

To: Attorneys for Defendant